

10.	24CV0456	DEAN C. KEHLER VS. JOSEPH A. DINNAN ET AL
MOTION TO COMPEL		

Before the Court are the following motions filed by Plaintiff, Dean C. Kehler (“Plaintiff”): 1) Motion to Compel Supplemental Responses from Defendant Joseph A. Dinnan to Requests for Admission, Sets One and Two; 2) Motion to Compel Supplemental Responses from Defendant Joseph A. Dinnan to Special Interrogatories, Set One; 3) Motion to Compel Supplemental Responses from Defendant Joseph A. Dinnan to Requests for Production of Documents, Set One; and 4) Motion to Compel Supplemental Responses from Defendant Joseph A. Dinnan to Form Interrogatories, Set One (collectively the “Discovery Motions”).

Plaintiff propounded Request for Admissions, Set One, Form Interrogatories, Set One, and Request for Production of Documents, Set One, on Defendant, Joseph A. Dinnan (“Defendant”), on or about January 15, 2025. Unverified responses were served on or about March 24, 2025, and supplemental verified responses were served on or about February 24, 2026; however, Plaintiff alleges that deficiencies remain. Plaintiff then propounded Requests for Admissions, Set Two, and Special Interrogatories, Set One, on Defendant on or about February 3, 2026. Defendant served unverified responses on or about March 16, 2026.

Plaintiff seeks sanctions in the amount of \$4,584.00 (Request for Admissions), \$6,672.00 (Request for Production of Documents), \$4,366.50 (Form Interrogatories), and \$3,975.00 (Special Interrogatories), for a total of \$19,597.50.

An Opposition was filed by Defendant on September 4, 2026. The Declaration of Vicky Boladin provides Defendant’s medical history/records and ongoing health issues which deprive Defendant of the physical strength and stamina to devote sustained attention to litigation. Defendant requests the Court deny Plaintiff’s request for sanctions, defer enforcement of any order compelling further responses, and allow him approximately 90 days from the hearing on the motions to serve supplemental discovery responses due to his ongoing medical condition. Ms. Boladin anticipates that Defendant should be able to resume meaningful participation in the litigation within approximately 30 days after his bypass surgery. The Supplemental Declaration of Vikram Sohal advises that Defendant’s bypass surgery is scheduled for September 29, 2026.

In reply, Plaintiff requests the Court set firm and non-extendable deadlines consistent with the corrected timeline established by the supplemental declaration and award monetary sanctions against Defendant as requested.

As to Requests for Admissions, Set Two, and Special Interrogatories, Set One, the Court finds the lack of verification is tantamount to no response at all. *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636 [253 Cal.Rptr. 762, 764]. The Court orders Defendant to serve verified code-compliant responses on Plaintiff no later than November 30, 2026. Defendant is further ordered to serve verified code-compliant supplemental responses to Request for

Admissions, Set One, Form Interrogatories, Set One, and Request for Production of Documents, Set One, on Plaintiff no later than November 30, 2026.

Regarding the request for monetary sanctions, sanctions are mandatory for one who "unsuccessfully makes or opposes a motion to compel a response...unless [the court] finds that one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust" Cal. Civ. Pro. §2030.300(d) (interrogatories), § 2031.310(h) (requests for production) & § 2033.290(d) (requests for admission). In all other circumstances, the imposition of discovery sanctions is permissive. This includes instances where there has been no opposition and discovery responses were served after the filing of the motion. Cal. Rule of Ct., Rule 3.1348(a).

Here, the Court finds that although Defendant was suffering from ongoing medical complications which may provide a basis for substantial justification or circumstances that make the imposition of the sanction unjust, this information was not sufficiently provided to Plaintiff, no motions were filed with the Court requesting to stay the proceedings, nor did Defendant seek a protective order. Due to this failure, Plaintiff was forced to incur unnecessary fees after granting numerous extensions. The Court grants Plaintiff's request for sanctions in the amount of \$19,597.50.

TENTATIVE RULING #10:

DEFENDANT IS ORDERED TO SERVE VERIFIED CODE-COMPLIANT RESPONSES TO REQUESTS FOR ADMISSIONS, SET TWO, AND SPECIAL INTERROGATORIES, SET ONE, ON PLAINTIFF NO LATER THAN NOVEMBER 30, 2026. DEFENDANT IS FURTHER ORDERED TO SERVE VERIFIED CODE-COMPLIANT SUPPLEMENTAL RESPONSES TO REQUEST FOR ADMISSIONS, SET ONE, FORM INTERROGATORIES, SET ONE, AND REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE, ON PLAINTIFF NO LATER THAN NOVEMBER 30, 2026.

PLAINTIFF'S REQUEST FOR SANCTIONS IS GRANTED IN THE AMOUNT OF \$19,597.50.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY

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AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.